



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 31 1992

DOT-E 9935
(FIRST REVISION)

1. ICI Explosives (USA) Inc., Dallas, Texas, (formerly Atlas Powder Company), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer non-DOT specification packages containing detonators for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of a non-specification, regular slotted corrugated fiberboard box to ship Class A and Class C detonators, and provides no relief from any regulation other than as specifically stated. Referenced to 49 CFR sections in this exemption are to regulations in effect on September 30, 1990.

2. BASIS. This exemption is based on an application from ICI Explosives (USA) Inc. (formerly Atlas Powder Company), dated November 13, 1991 and supplemental letter dated April 24, 1992, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Detonators; Class A and Class C explosives which have been approved by the Office of Hazardous Materials Exemptions and Approvals.

4. PROPER SHIPPING NAME (49 CFR 172.101). Detonators, Class A explosives or Detonators, Class C explosives, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.66(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a regular slotted, fiberboard box constructed of 275 pound test, single wall corrugated fiberboard. Box must be securely closed with moisture-resistant adhesive. The packaging must be capable of withstanding the tests described in Attachments 1, 2, 3 and 4 to the application for exemption dated February 16, 1988. The gross weight of the package, as prepared as for shipment, may not exceed 65 pounds.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving fire, explosion or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. March 31, 1994.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 31 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: USCG, FAA, FHWA, FRA.